

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
THOMAS WRIGHT,

Plaintiff,

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
ALEXANDRA MALDONADO, POLICE OFFICER
TERRANCE WILLIAMS, POLICE OFFICER LEANDRO
CASTRO,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

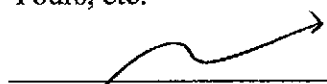
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 27, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer ALEXANDRA MALDONADO
Police Officer TERRANCE WILLIAMS
Police Officer LEANDRO CASTRO

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, THOMAS WRIGHT, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 12, 2011, at approximately 11:30 a.m., plaintiff, Thomas Wright, while lawfully in front of his apartment building, located at 149 West 142nd Street, New York, New York, was subject to an unlawful search, detention, false imprisonment and false arrest by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff THOMAS WRIGHT is a resident of the County of New York, State of New York.

3. Police Officer ALEXANDRA MALDONADO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer ALEXANDRA MALDONADO, is being sued in her individual and official capacities.

5. Police Officer TERRANCE WILLIAMS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Police Officer TERRANCE WILLIAMS, is being sued in his individual and official capacities.

7. Police Officer LEANDRO CASTRO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Police Officer LEANDRO CASTRO, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On March 3, 2011, plaintiff Thomas Wright lawfully exited his apartment building located at 149 West 142nd Street, New York, New York, with the intention to get change for a twenty-dollar bill at the bodega down the street.

15. Plaintiff saw his friend "Hank," an older man, on his way to the bodega and asked "Hank" whether he had change for a twenty-dollar bill.

16. "Hank" had change for the twenty-dollar bill, and handed the change to Plaintiff THOMAS WRIGHT in exchange for the twenty-dollar bill.

17. As plaintiff walked back to his apartment building, three defendant police officers suddenly jumped out of an unmarked black Ford Expedition and approached Plaintiff Thomas Wright.

18. Defendant Police Officer ALEXANDRA MALDONADO unlawfully approached Plaintiff Thomas Wright, unlawfully ordered him to get up against the wall and put his hands behind his back, and without reasonable suspicion or probable cause asked whether he had any weapons on him.

19. Plaintiff Thomas Wright answered that he did not have any weapons on him, and complied with Defendant Police Officer ALEXANDRA MALDONADO'S order to get against the wall and put his hands behind his back.

20. Defendant Police Officer ALEXANDRA MALDONADO unlawfully and without reasonable suspicion or legal justification patted Plaintiff Thomas Wright down over his clothing, touching all areas of his body.

21. Defendant Police Officer ALEXANDRA MALDONADO then asked Plaintiff Thomas Wright what he had in his pocket.

22. Plaintiff THOMAS WRIGHT said that the only thing he had in his pocket was money, and he reached into his pocket, took out the bills, and showed them to Defendant Police Officer Alexandra Maldonado.

23. Defendant Police Officer ALEXANDRA MALDONADO then became angry, unlawfully and forcefully pushed plaintiff against the wall, and reached her hand inside of Plaintiff Thomas Wright's pocket, without probable cause or legal justification.

24. Defendant Police Officer ALEXANDRA MALDONADO did not find anything inside of Plaintiff Thomas Wright's pocket when she unlawfully searched him.

25. Defendant Police Officer ALEXANDRA MALDONADO then aggressively used profanity towards Plaintiff Thomas Wright, causing plaintiff to fear for his safety.

26. Plaintiff THOMAS WRIGHT asked Defendant Police Officer ALEXANDRA MALDONADO to explain why she stopped him, but Defendant Alexandra Maldonado refused to explain why she had stopped him and why she had searched inside of his pocket.

27. Defendant Police Officer Alexandra Maldonado then ordered Plaintiff THOMAS WRIGHT to provide her with identification.

28. Plaintiff then handed Defendant ALEXANDRA MALDONADO his driver's license.

29. The Defendant Police Officers then detained Plaintiff THOMAS WRIGHT for approximately thirty minutes, during which time Defendant ALEXANDRA MALDONADO aggressively questioned Plaintiff THOMAS WRIGHT.

30. After approximately thirty minutes, the Defendant Police Officers walked to their car and drove away.

31. The Defendant police officers did not issue Plaintiff THOMAS WRIGHT a ticket or summons of any kind.

32. The Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

33. Defendant police officers TERRANCE WILLIAMS and LEANDRO CASTRO observed defendant police officer ALEXANDRA MALDONADO violate plaintiff's constitutional rights, but made no attempt to stop Police Officer Maldonado from continuing to violate plaintiff's rights.

34. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

35. The unlawful search and false arrest of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

36. After the Defendant police officers unconstitutionally stopped, detained, and searched Plaintiff Thomas Wright, he filed a complaint with the Civilian Complaint Review Board ("CCRB") against Defendant Police Officers ALEXANDRA MALDONADO, TERRANCE WILLIAMS, and LEANDRO CASTRO.

37. On April 20, 2012, the CCRB substantiated charges against Defendant Police Officer ALEXANDRA MALDONADO.

38. Specifically, the CCRB found that Defendant Police Officer ALEXANDRA MALDONADO abused her authority when she pushed plaintiff and that she abused her authority when she searched plaintiff.

39. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, and search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person.

40. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to stop, question, search, and arrest and or issue criminal summonses to individuals in the absence of any reasonably articulable suspicion that the individuals had violated any law or ordinance. See testimony of Police Officer Serrano in Floyd v. City of New York, 08 Civ. 1034 (SAS) (March 21, 2013) (Police Officer Serrano noted that he has stopped, questioned, and frisked people based on less than reasonable suspicion on the instruction of his supervising officer. Serrano recalled an instance where a sergeant told him to issue summonses to two young men of color who were leaning against a wall. When Serrano questioned the instruction, the sergeant said to give them summonses for blocking pedestrian traffic although the two young men were not blocking the way. Judge Scheindlin noted that stopping someone on less than reasonable suspicion is not lawful.).

41. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutional stopping, questioning, and searching of individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, searching, and arresting individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. Defendants lacked probable cause to search plaintiff.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

57. Defendants failed to intervene to prevent the unlawful conduct described herein.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

63. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

64. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

65. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

67. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

68. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

69. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Thomas Wright demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 27, 2013

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
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New York, NY 10007
(212) 577-2690

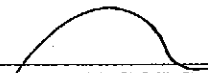
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer ALEXANDRA MALDONADO
Police Officer TERRANCE WILLIAMS
Police Officer LEANDRO CASTRO

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
March 27, 2013


STUART E. JACOBS